

**MEMORANDUM OF UNDERSTANDING BETWEEN THE
BRECKSVILLE BROADVIEW HEIGHTS CITY SCHOOL
DISTRICT BOARD OF EDUCATION AND
JANE-NA CHANG AND THE
BRECKSVILLE BROADVIEW HEIGHTS EDUCATION ASSOCIATION**

This Memorandum of Understanding ("MOU") is entered into this 16th day of November 2022 by and between the Brecksville Broadview Heights City School District ("District") Board of Education ("Board") and Jane-Na Chang ("Ms. Chang") and the Brecksville Broadview Heights Education Association ("Association") (collectively, the "Parties").

WHEREAS, there is an ongoing and unresolved dispute between the parties regarding a Reduction In Force for the 2022-2023 school year, and the interpretation of the Collective Bargaining Agreement ("CBA"), including the Past Practice of the Parties, as it relates to the right of RIF'd member's to "bump" into other positions based upon the member's licensure and certification; and

WHEREAS, the Collective Bargaining Agreement, Section 29.H., requires that any dispute related to a Reduction In Force is to be resolved through the Judicial Process in lieu of resolving the dispute through the established Grievance Procedure; and

WHEREAS, the parties recognize that it is in the mutual best interest of the Board, the Association, and Ms. Chang to resolve this dispute in a collaborative fashion that avoids resolving it through the Judicial Process; and

WHEREAS, the parties recognize that it is in the mutual best interest of the Board, the Association, and Ms. Chang that Ms. Chang retire at the end of the 2023-2024 school year based upon the terms of this MOU, and

WHEREAS, none of the Parties concedes or admits to any wrongdoing in the aforementioned employment relationship or in the terms that lead to the creation of this MOU; and

WHEREAS, none of the Parties concedes any bargaining position, nor admits any wrongdoing, related to each Parties' interpretation of the Collective Bargaining Agreement, including the Past Practice of the Parties, as it relates to the right of RIF'd member's to "bump" into other positions based upon the member's licensure and certification; and

WHEREAS, the Parties recognize that there is a need for continued cooperation and collaboration between the Parties moving forward for the remainder of the 2022-2023 school year and the 2023-2024 school year; and

THEREFORE, in exchange for consideration, the value and sufficiency of which is herein acknowledged, the Parties agree as follows:

1. Ms. Chang shall submit to the Board, no later than October 15th, 2022, an irrevocable letter of retirement from her position in the Brecksville Broadview Heights City School District effective at the end of the 2023-2024 school year (see attached).
2. Ms. Chang, with no reduction to her 2022-2023 and 2023-2024 contracted salary and fringe benefits, shall not be subject to any further reduction of her hours of employment for the duration of the 2022-2023 and 2023-2024 school years. Furthermore, Ms. Chang shall maintain a contract that is at least a minimum of .83 FTE for the remainder of the 2022-2023 and 2023-2024 school years. However, nothing herein prohibits the Board from addressing any disciplinary matter(s), should such a matter(s) arise during the 2022-2023 and/or 2023-2024 school years, in accordance with the CBA.
3. In consideration of Ms. Chang's submission of the attached letter of retirement, the Board agrees to provide Ms. Chang with all salary, fringe benefits, and severance payments to which she is entitled to under CBA at the conclusion of the 2023-2024 contract year.
4. Ms. Chang, together with her heirs, beneficiaries, personal representatives, assigns, attorneys, and agents, past, present and future, and the Association, knowingly and voluntarily, irrevocably and unconditionally releases, acquits and fully and forever discharges the Brecksville Broadview Heights City School District Board of Education (together with the Board's elected members, their officers, employees, agents, directors and legal representatives, both past and present and in their individual and official capacities) (collectively "Board"), from any and all possible presently known or unknown claims, demands, actions, causes of action, suits, appeals, debts, charges, complaints, liabilities, grievances, obligations, expectancies, representations, promises, agreements, controversies, damages, expenses, and attorneys' fees arising out of or in any way related to Ms. Chang's resignation and to the terms that gave rise to the execution of this MOU. This release and waiver includes, but is not limited to, claims arising under the CBA, Board Policy, the Americans with Disabilities Act, as amended, Title VII of the Civil Rights Act of 1964, the Civil Rights Act of 1991, the Age Discrimination in Employment Act of 1967, (ADEA) the Older Workers' Benefit Protection Act of 1990, (OWBPA) Ohio Revised Code Chapters 3307, 3319, 4112, and 4117, and any claims related to breach of contract, promissory estoppel, unjust enrichment, breach of implied covenants and duties, fraud, defamation, intentional infliction of emotional distress, intentional tort, retaliation, violations of public policy, or claims for lost or unpaid benefits of any kind or nature, which Ms. Chang may now have and may now or hereafter assert against the Board arising out of or in any way related to Ms. Chang's resignation and to the terms that gave rise to the execution of this MOU. This release further includes any other right to recover monetary relief or any other personal relief through any administrative charge or other claim (this waiver shall not affect any right to file such charge). Furthermore, Ms. Chang and the Association agree to withdraw any pending grievance or any pending claim through the judicial process related to Ms. Chang's resignation and the facts that gave rise to this MOU.

5. Ms. Chang acknowledges that this MOU releases and waives any claims for age discrimination under the ADEA and/or OWBPA. She further acknowledges that she has read and understands the MOU, that she has been given a period of at least 21 calendar days within which to consider the MOU, and that she has been advised to consult with an attorney about the meaning and effect of the MOU. She understands that she can elect to sign in less than 21 calendar days, and that if she does so, she expressly waives her right to the full 21-day waiting period, and does so knowingly and voluntarily. Ms. Chang further understands that she may revoke her acceptance of the MOU at any time during a seven-day period after she has signed the MOU. To effect such revocation, Ms. Chang must deliver or have her attorney deliver a written notice of revocation to Lindsay Gingo, Esq. at Gingo & Bair Law, LLC, Summit One, 4700 Rockside Road, Suite 440, Independence, Ohio, 44131, or lingo@gingobair.com. This must be done prior to the conclusion of the seventh day after she signs the MOU. If a written revocation is not received by the end of the seven-day period, this MOU will become fully effective and enforceable at that time.
6. Neither the Board nor the Association concedes any bargaining position related to the facts that gave rise to this MOU, nor admits wrongdoing related to the facts that gave rise to this MOU. Furthermore, the Parties agree that each Party's interpretation of the Collective Bargaining Agreement, including the Past Practice of the Parties, as it relates to the right of RIF'd member's to "bump" into other positions based upon the member's licensure and certification; remains unanswered, unchanged, and is open to the interpretation of the Parties and to future discussions and bargaining between the Parties.
7. The Parties to this MOU further acknowledge and agree: (a) each has had full and complete opportunity to review and examine the terms of this MOU and to consult with persons of their choice, including legal counsel, prior to execution of this MOU; (b) each has knowingly and voluntarily executed this MOU and fully understands the rights, duties and responsibilities imposed by the MOU and intends to be bound by the terms of the MOU; and (c) there are no other terms, conditions or agreements relating to the subject matters herein set forth aside from the provisions contained in this MOU.
8. This MOU shall not set any precedent in any future situation that may arise between the Board and/or Ms. Chang and/or the Association, nor shall it be referred to or cited in any fashion in any other dispute or disagreement between the Board and Ms. Chang and the Association, except to the extent the dispute or disagreement relates solely to the enforcement of the terms of this MOU.

In witness whereof, and intending to be legally bound hereby, the following individuals have affixed their signatures hereto:

FOR MS. CHANG:

Date: 11/21/2022

Jane-Na Chang
Jane-Na Chang

FOR THE ASSOCIATION:

Date: 11/21/2022

Bonnie Monteleone
Bonnie Monteleone
President
Brecksville Broadview Heights Education
Association

FOR THE BOARD:

Date: 11-18-22

Joelle Magyar
Joelle Magyar
Superintendent
Brecksville Broadview Heights City School
District